

The Beedi Workers Welfare Fund Rules, 1978

Source: <https://indiankanoon.org/doc/88842899/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

[0](#)

[, Cited by](#)

[3](#)

[\]](#)

[Union of India - Act](#)

[The Beedi Workers Welfare Fund Rules, 1978](#)

[UNION OF INDIA](#)

[India](#)

[The Beedi Workers Welfare Fund Rules, 1978](#)

[Rule THE-BEEDI-WORKERS-WELFARE-FUND-RULES-1978 of 1978](#)

[Published on 25 September 1978](#)

[Commenced on 25 September 1978](#)

[\[This is the version of this document from 25 September 1978.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[The Beedi Workers Welfare Fund Rules, 1978](#)

[Published Vide G.S.R. 1232, dated 25-9-1978](#)

[309.](#)

[In exercise of the powers conferred by section 12 of the Beedi Workers Welfare Fund Act, 1976 \(62 of 1976](#)

[\), the Central Government hereby make the following rules, namely :-](#)

[Chapter I](#)

[General](#)

[1.](#)

[Short title and commencement .-\(1\) These rules may be called The Beedi Workers Welfare Fund Rules, 1978.](#)

[\(2\)](#)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-In these rules, unless the context otherwise requires,-

(1)

"Act "means the Beedi Workers Welfare Fund Act, 1976 (62 of 1976

);

(2)

"Advisory Committee "means an Advisory Committee constituted under section 5 of the Act;

[(2-A) The agency for the purposes of the provisions of the Act and rules framed thereunder shall satisfy the following criteria, namely:-

(a)

it shall be a legal entity;

(b)

it shall have the necessary set up in the area in which project to provide welfare measures and facilities, is proposed to be undertaken and also gained the relevant experience for a minimum period of three years;

(c)

it shall have the objective to serve the social and economic needs of the community as a whole and mainly the weaker sections and unorganised sections like beedi workers. It must no work on profit motive but on no profit no loss basis;

(d)

the activities of the agency shall be open to participation by all citizens of India irrespective of the religion, caste, creed, sex, race, place of birth or any of them;

(e)

it should have the necessary flexibility, professional competence and organisational skills to implement programme particularly in respect of unorganised work force;

(f)

it declares that it will adopt, constitutional and non-violent means for achieving its objectives; and

(g)

it is committed to secular and democratic concepts and methods of functioning;]

(3)

"Central Advisory Committee "means a Central Advisory Committee constituted under section 6 of the Act;

(4)

"Chairman "means the Chairman of an Advisory Committee or the Central Advisory Committee, as the case may be;

(5)

"Commissioner "means a Welfare Commissioner appointed by the Central Government under section 3, for any State or States concerned;

(6)

"Form "means form in Schedule V;

(7)

"Fund "means the Beedi Workers Welfare Fund;

(8)

"member "means a member of an Advisory Committee or the Central Advisory Committee, as the case may be;

(9)

"Schedule "means a Schedule appended to these rules;

(10)

"section "means a section of the Act;

(11)

"treasury "means any Government Treasury or sub-treasury.

Chapter II

Central Advisory Committee, Advisory Committees And Sub-Committees

3.

Composition .-(1)(a) The Central Advisory Committee shall consist of the following persons, to be appointed by the Central Government, namely:-

(i)

[Chairman;]

(ii)

[two Vice-Chairman, of whom one shall be an officer of the Central Government; and the other either a representative of the employers or a representative of the persons engaged in Beedi establishments;]

[Substituted by G.S.R. 629(E), dated 1.9.2009 (w.e.f. 1.9.2009).]

(iii)

two officer of the Central Government to be nominated by the Government, ex officio ;

(iv)

[such number of Welfare Commissioners as may be nominated by the Central Government, ex officio ;]

[Substituted by G.S.R. 78(E), dated 19.2.1998 (w.e.f. 20.2.1998).]

(v)

such number of persons of represent the owners of establishments, factories or contractors who are engaged in manufacture of beedis as are equal in number to the aggregate of those provided in sub-clauses (ii) to (iv) to be appointed, after consultation with such organisations, if any, of the owners of beedi factories or establishments or contractors, as may be recognised by the Central Government in this behalf;

(vi)

such number of persons, of whom one shall be a woman to represent the persons employed in the manufacture of beedis employed by any establishment or factory; directly or through any agency, employers or contractor as are equal in number to those provided in sub-clause (v) to be appointed after consultation with such organisations, if any, of the person so employed as may be recognised by the Central Government in this behalf.

(b)

An officer of the Central Government shall be appointed by that Government as Secretary of the Central Advisory Committee and shall be entitled to attend and take part in the meetings of the Committee, but shall not be entitled to vote.

(2)

(a)

Each Advisory Committee constituted under section 5 shall consists of the following persons, to be appointed by the Central Government, namely:-

(i)

the Chairman;

(ii)

the Commissioners having jurisdiction in the State or States for which the Advisory Committee is constituted, who shall be the Vice-Chairman, ex officio :

Provided that where more than one Commissioner is appointed to the Committee the Central Government may appoint any one of them to be the Vice-Chairman;

(iii)

one representative each of the concerned State Government or State Governments, as the case may be, ex officio ;

(iv)

a member of the State Legislature appointed in consultation with the Government or Governments of State or States concerned;

(v)

such number of persons to represent the owner of beedi establishments or factories or contractors who are engaged in the manufacture of beedis, as are equal to the aggregate of those provided in sub-clauses (ii) and (iii), to be appointed after consultation with the organisations of the owners of beedi establishments or factories or contractors, if any, as may be recognised by the Central Government in this behalf;

(vi)

such number of persons to represents the persons employed in the manufacture of beedis, as are equal to the aggregate of those provided in sub-clauses (ii) and (iii) to be appointed after consultation with the organisations of the

persons so employed, if any, as may be recognised by the Central Government in this behalf;

(vii)

[a woman, if no woman has been appointed under sub-clause (v) or sub-clause (vi).]

[Substituted by G.S.R. 703, dated 6.8.1982 (w.e.f. 21.8.1982).]

(b)

An officer of the Beedi Workers Welfare Organisation of the State or States concerned shall be appointed as the Secretary of the Advisory Committee and the Secretary so appointed shall be entitled to attend and take part in the meetings of the Committee, but shall not be entitled to vote.

4.

Term of office of members .-(1)(a) A member (other than an ex officio member) shall unless he resign his office or dies or otherwise vacates his office at an earlier date, hold office for a period not exceeding three years as may be specified by the Central Government in each case while making the appointment, from the date of publication in the Official Gazette of the notification appointing him as a member of the Advisory Committee or the Central Advisory Committee, as the case may be, and shall be eligible for reappointment:

Provided that an outgoing member shall continue in office until the appointment of his successor is notified in the Official Gazette.

(b)

An ex officio member shall hold office during the pleasure of the Central Government.

(2)

A member appointed to fill a casual vacancy shall hold office for as long as the member whose place he fills would have been entitled to hold office if the vacancy had not occurred.

(3)

If a member is unable to attend a meeting of the Central Advisory Committee or the Advisory Committee, then in the case of a member appointed under sub-clause (iv) or sub-clause (v) of clause (a) of sub-rule (1) of rule (3) or under sub-clause (v) or sub-clause (vi) of clause (a) of sub-rule (2) of that rule the Central Government may in consultation with body which is represented by him in the Central Advisory Committee or the Advisory Committee, as the case may be, depute a member in his place to attend the meeting and in other cases may nominate a substitute in his place to attend the meeting and such deputed or nominated member shall have all rights of a member in respect of that meeting.

5.

Resignation

-(1) A non-official member other than the Chairman of an Advisory Committee may resign his office by writing under his hand addressed to the Chairman.

(2)

The Chairman of an Advisory Committee may resign his office by writing under his hand addressed to the Central Government.

(3)

The resignation shall take effect from the date of its acceptance or on the expiry of thirty days from the date of its receipt by the Chairman or, as the case may be, by the Central Government, whichever is earlier.

6.

Absence from India -

[** *] Before a non-official member leaves India he shall intimate to the Chairman the date of his departure from and date of his expected return to India, and if he intends to be absent from India for a period longer than six months, he shall tender his resignation.

[* * *]

[Omitted by G.S.R. 703, dated 6.8.1982 (w.e.f. 21.8.1982).]

7.

Vacation of office .-A non-official member shall be deemed to have vacated his office-

(a)

if he becomes of unsound mind or is declared insolvent; or

(b)

if he is convicted for any offence which in the opinion of the Central Government involves moral turpitude; or

(c)

if he is absent from three consecutive meetings of the Advisory Committee or the Central Government, as the case may be, without leave of absence from the Chairman; or

(d)

if in the opinion of the Central Government, it is not desirable that he should continue to be a member of the Advisory Committee or the Central Government as the case may be;

(e)

in the case of a member of a State Legislature, on his ceasing to be member of such State Legislature;

(f)

if he ceases to represent the interest for representing which he was appointed.

8.

[Allowances payable to member

.- (1) Every non-official member including a non-official member co-opted under section 7 shall be entitled to receive travelling allowance, daily allowance and conveyance allowance in accordance with the instructions contained in Ministry of Finance O.M. No F. 6(26)/EIV/59, dated 5th September, 1960 as for the time being in force.

(2)

The allowance under this rule shall be admissible only on production of a certificate by the non-official members to the effect that they have not claimed or drawn travelling allowance or conveyance allowance in respect of journeys and halts from any other source.]

Chapter III

Procedure Relating To Meetings

9.

Disposal of business .-(1) Every question which an Advisory Committee or the Central Advisory Committee is required to take into consideration shall be considered either at a meeting or, if the Chairman so directs, by sending the necessary papers to every member for opinion:

Provided that the papers are sent to the members by registered post with acknowledgment due and with the request that the views of the members should reach the office of the Advisory Committee or the Central Government, as the case may be, within a specified period:

Provided further that the papers will not be sent to a member who is absent from India.

(2)

When a question is referred to the members for opinion by sending papers, any member may request that the question be considered at a meeting and thereupon the Chairman may, and if the request is made by three or more members shall direct that it be so considered.

(3)

If not less than three members of an Advisory Committee or the Central Advisory Committee request the Chairman to refer any matter to the Committee, the Chairman shall refer that matter to it accordingly.

10.

[Time, place and date of meeting

.-An Advisory Committee or the Central Advisory Committee shall meet at least once a year at such places and on such dates and at such times as may be appointed by the Chairman.]

11.

Notice of meetings and list of business .-(1) Notice shall be given to every member present in India of the time and place fixed for each ordinary meeting at least fifteen days before such meeting and every member shall be furnished with a list of business to be considered at the meeting.

(2)

(a)

An urgent meeting of an Advisory Committee or the Central Advisory Committee may be called by the Chairman thereof to discuss matters on which a decision had to be taken immediately.

(b)

Notice shall be given either by registered post or by telegram or in person to every member present in India, of the place, time and of an urgent meeting at least four days before such meeting and every member shall be furnished with a

list of business to be considered at the meeting.

(3)

No business which is not included in the list shall be considered at a meeting without the permission of the Chairman.

12.

Presiding at meeting

.-The Chairman shall preside at every meeting at which he is present and in his absence the Vice-Chairman shall preside.

13.

Quorum

.-No business shall be transacted at a meeting whether it be an ordinary or emergency meeting of an Advisory Committee or the Central Advisory Committee unless at least one-third of the total number of members of the Advisory Committee or the Central Advisory Committee, as the case may be, having the right to vote are present and at least one of the member so present is the Chairman or the Vice-Chairman:

Provided that if at any meeting less than one-third of the total number of members are present the Chairman or in the absence of Chairman the Vice-Chairman may adjourn the meeting to a date not less than seven days from the date of the meetings informing the members present and sending registered notice to the other member that he proposes to dispose of the business at the adjourned meeting irrespective of the quorum and it shall thereupon be lawful to dispose of the business at the adjourned meeting whether there is quorum or not.

14.

Recommendation by majority

.- (1) Every question of a meeting of the Advisory Committee or the Central Advisory Committee shall be decided by a majority of votes of the members present and voting on that question, but the minority shall in all cases have the right of requiring their dissent to be noted.

(2)

Every question referred to the members for opinion shall unless the Chairman in pursuance of sub-rules (2) of rule 9 reserves it for consideration at a meeting be decided in accordance with opinion of the majority of members recording opinion within the time specified.

(3)

In the case of an equals division of votes or opinion the Chairman shall have an additional or casting vote whether the matter is considered at the meeting the Central Advisory Committee or the Advisory Committee or by sending the papers for the opinion of members.

15.

Minutes of meetings

.-The proceedings of each meeting of an Advisory Committee or the Central Advisory Committee shall be circulated to all members present in India, as soon as may be after the meeting, and shall be read out and confirmed at the next meeting of the Committee, and shall be signed by the Chairman or as the case may be, the Vice-Chairman or other person presiding at such next meeting and shall thereafter be recorded in a minute book, which shall be kept for permanent record.

16.

Headquarters of an Advisory Committee or the Central Advisory Committee .-The headquarters of the Central Advisory Committee shall be in New Delhi and the headquarters of an Advisory Committee shall be at such place or places as may be fixed by the Central Government from time to time.

17.

Executive of an Advisory Committee

.- [* * *] The Welfare Commissioner shall be the Chief Executive of an Advisory Committee and exercise the executive functions of the Committee on its behalf.

[* * *]

[Omitted by G.S.R. 703, dated 6.8.1982 (w.e.f. 21.8.1982).]

18.

Staff powers of the Commissioner .-The Commissioner may authorise the staff of the Advisory Committee to give assistance to any member of an Advisory Committee or of a sub-Committee of the Advisory Committee or any other

Authority exercising executive or advisory functions in connection with the Act.

19.

Conditions of service of persons appointed under section 8

.-Persons appointed under section 8 shall be governed by such rules relating to the terms and conditions of service as are applicable to Central Government Servants.

20.

Schemes of expenditure

.-(1) The Commissioner shall have power subject to the provisions in the sanctioned budget to incur expenditure on administrative staff and welfare schemes: Provided that-

(i)

he shall have no powers to sanction any scheme not included in the budget, if it involves expenditure exceeding Rs. 50,000 non-recurring and Rs. 5,000 recurring a year; and

(ii)

any new schemes within these limits shall require the approval of the Finance sub-Committee before any expenditure on it is incurred.

(2)

The Commissioner may sanction without reference to the Advisory Committee, expenditure on contingencies supplies and services and purchases of articles required for the smooth and efficient running of the organisation under him subject to financial provision in the sanctioned budget and to the condition that the expenditure on any single object or service shall not exceed Rs. 4,000 non-recurring and Rs. 800 recurring.

Powers Of Advisory Committees

21.

Budget

.-(1) The annual budget as prepared by the Commissioner in consultation with the Finance sub-Committee shall be considered by the Advisory Committee concerned each year and thereafter a copy of the budget, as approved by the Advisory Committee, shall be forwarded not later than the 1st day of October each year for sanction to the Central Government which may make such alterations therein as it considers necessary before according its sanction.

(2)

The budget to be forwarded to the Central Government shall be accompanied by detailed self-contained notes explaining new schemes included therein.

22.

Other matters to be considered by an Advisory Committee .-An Advisory Committee shall consider the budget and any other matter that may be laid before it by the Commissioner with permission of the Chairman.

23.

Committee to be informed of expenditure

.-A memorandum setting forth any grant made or expenditure since the last meeting shall be laid at each meeting of an Advisory Committee.

24.

Finance sub-Committee .-(1) An Advisory Committee shall elect from among its members, two persons of whom one shall be a person to represent owners of establishments or factories or contractors who are engaged in the manufacture of beedis, and the other to represent the persons employed in the manufacture of beedis to constitute a Finance sub-Committee of which the Commissioner shall be an additional member and Chairman.

(2)

An Advisory Committee may at any time co-opt a person or persons to the Finance sub-Committee and any person so co-opted shall exercise all the powers and functions of a member of the Finance sub-Committee, but shall not be entitled to vote and shall not solely by reason of being so co-opted be a member of the Advisory Committee.

(3)

Notice of every meeting of the Finance Committee shall be sent to the Chairman of the Advisory Committee who may attend such meeting if he so desires and if he does so attend, he shall notwithstanding anything contained in sub-rule (1), preside at the meeting and shall be entitled to vote.

25.

Duties of the Finance sub-Committee .-The duties of the Finance sub-Committee shall be to frame schemes of expenditure, to advise on the budget drawn up by the executive of the Advisory Committee and on the accounts of the Advisory Committee and also in regard to all expenditure and to consider all schemes referred to in clause (ii) of the proviso to rule 20.

26.

Other sub-Committees

.-An Advisory Committee may, as and when considered necessary, constitute from its members, as many sub-Committees as it may deem necessary for considering and reporting on such matter as may be specifically assigned to it.

27.

Meeting of the sub-Committees

.-The meeting and proceeding of the Finance sub-Committee and any other sub-Committees which may be constituted under rule 26 shall be governed by the provisions herein continued for regulating the meetings and proceeding of an Advisory Committee in so far as the same are applicable.

Chapter IV

Grants And Welfare Standards

28.

Grants

.- (1) In each case in which a grant is made by or with the approval of the Central Government to a State Government, a [local authority/agency] the owner of an establishment or factory or contractor engaged in the manufacture of beedis, in aid of any scheme approved by the Central Government for the purposes of the Act, the Central Government may impose conditions necessary for ensuring-

(a)

that the work for which the grant is made is duly and promptly executed and the money is actually utilised for the purpose for which it is granted;

(b)

that the data on which the grant is calculated are in accordance with facts;

(c)

that any particulars which the Central Government may from time to time require for the proper discharge of its responsibilities are promptly supplied.

(d)

that all necessary facilities for inspection are accorded to persons duly authorised by the Central Government for the purpose of satisfying itself that the provisions of clause (a) are complied with or for checking the correctness of any particulars supplied under clause (c) or for the collection of any such particulars;

(e)

that proper accounts of the money granted are kept and are submitted for audit by such persons as the Central Government may authorise in the behalf;

(f)

that an additional statement of account together with a certificate of a Registered Accountant or other recognised body of auditors to the effect that the accounts are correct, is furnished by the grantee; and

(g)

that the labour employed on regular basis and that employed on contract basis are given [same]

[Substituted by G.S.R. 703, dated 6.8.1982 (w.e.f. 21.8.1982).]

welfare facilities.

(2)

Before making a grant to a State Government a local authority/agency, or the owner of establishment or factory or contractor who is engaged in the manufacture of beedis, the Central Government shall require such State Government, local fulfilment of the conditions imposed by the Central Government under sub-rule (1).

(3)

It shall be the condition of every bond executed under sub-rule (2) that in the event of the State Government, local authority/agency or owner of the establishment or factory or contractor violating any condition imposed under sub-rule

(1) such State Government, local authority/agency, or owner or contractor shall be liable to pay to the Central Government a sum not exceeding the amount paid as grant by way of penalty in addition to the refund of the entire remaining grant, and where the amount of penalty and the remaining grant is huge, payment may be allowed in two or three instalments.

29.

Standard of dispensary or hospital services .-(1) The standard of dispensary service to be provided by owners of establishments or factories or contractors who are engaged in the manufacture of beedis for the purpose of getting the grant-in-aid envisaged in clause (c) of sub-section (1) of section 4 of the Act shall be as specified in Schedule II, hereinafter in this rule and in rules 30 and 31 referred to as the prescribed standard.

(2)

There shall be maintained an independent dispensary or hospital at the site of each establishment or factory engaged in the manufacture of beedis according to the prescribed standard: Provided that a common main dispensary may be maintained for several establishments or factories engaged in the manufacture of beedis with branch dispensaries attached to each establishment or factory engaged in the manufacture of beedis subject to the following conditions, namely:-

(i)

the common main dispensary shall maintain the standards prescribed for the aggregate number of workers of all the establishments or factories engaged in the manufacture of beedis served by it or the standard maintained by it during the year 1975, whichever is higher;

(ii)

every branch dispensary shall have a qualified doctor and a qualified pharmacist (compounder);

(iii)

the common main dispensary shall be so situated that none of the establishment or factory engaged in the manufacture of beedis served by it is more than fifteen kilometers away from it; and

(iv)

the common main dispensary shall maintain an ambulance van for taking serious cases of injury and sickness from the branch dispensaries to the common main dispensary.

(3)

The Commissioner may if he is satisfied that any dispensary or hospital is being efficiently run and served the purpose for which it is established, waive any of the requirements specified in the prescribed standard:

Provided that no such dispensary or hospital shall contain any room other than a store room which is less than four metres by three metres in area:

Provided further that a Registered Medical Practitioner may be appointed to be incharge of a dispensary catering to more than 250 workers, only if he has ten years experience as medical officer in independent charge of a dispensary.

30.

Inspection

.-The dispensary services maintained by establishments or factories or contractors engaged in the manufacture of beedis shall be inspected at intervals not exceeding one year by such medical or other officer as may be authorised by the Commissioner for the purpose or by the Commissioner himself whenever he considers it necessary and the inspecting officer or the Commissioner, as the case may be, shall, if the dispensary conforms to the prescribed standard issue a certificate in Form "A "which shall be valid for a period of one year from date of issue.

31.

Submission of periodic returns .-Every owner or contractor engaged in the manufacture of beedis, who maintain a dispensary service according to the prescribed standard shall submit to the Commissioner-

(i)

In January and July of each year a statement showing the total number of persons employed by him in the manufacture of beedis during the preceding six months; and

(ii)

In January of each year a certified statement of expenditure incurred on the dispensary during the preceding twelve months.

32.

Standard of maternity centre

-(1) The standard of maternity centre to be provided by owners or contractors who are engaged in the manufacture of beedis for the purpose of getting the grants-in-aid envisaged in clause (c) of sub-section (1) of section 4 of the Act shall be as specified in Schedule III, hereinafter in this rule and as in rules 33, 34 and 35 referred to as the prescribed standard.

(2)

There shall be maintained as independent maternity centre at each establishment engaged in the manufacture of beedis according to the prescribed standard:

Provided that a common main maternity centre may be maintained for several establishments of factories engaged in the manufacture of beedis with branch maternity centre attached to each establishment or factory engaged in the manufacture of beedis subject to the following conditions, namely:-

(i)

the common main maternity centre shall maintain the prescribed standard for the aggregate number of workers of all the establishments or factories engaged in the manufacture of beedis served by it or the standard maintained by it during the year 1975, whichever is higher;

(ii)

every branch maternity centres shall have a qualified doctor and a qualified compounder;

(iii)

the common main maternity centre shall be so situate that none of the establishments manufacturing beedis served by it is more than fifteen kilometres away from it; and

(iv)

the common main maternity centre shall maintain an ambulance van for taking serious cases from the branch maternity centres to the common maternity centre.

(3)

The Commissioner may, if he is satisfied that a maternity centre is being efficiently run and serves the purpose for which it is established, waive any of the requirements specified in the prescribed standard:

Provided that the functions of a lady health visitor may be performed by a fully qualified and registered midwife who has not less than ten years experience as a midwife:

Provided further that a lady medical licentiate may be appointed to be incharge of a maternity centre catering to more than 1,000 workers if she has ten years experience as a medical officer in independent charge of a maternity centre.

33.

Inspection

.-The maternity centre maintained by owners of establishments or factories or contractors engaged in the manufacture of beedis shall be inspected at intervals not exceeding one year by such medical or other officers as may be authorised by the Commissioner for the purpose or by the Commissioner himself whenever he considers it necessary and the inspecting officer or the Commissioner, as the case may be, shall, if the centre conforms to be prescribed standard, issue a certificate in Form B, which shall be valid for a period of one year from the date of issue.

34.

Submission of periodic returns .-Every owner of an establishment or factory or a contractor engaged in the manufacture of beedis who maintains a maternity centre according to the prescribed standard shall submit to the Commissioner in January of each year a certified statement of the expenditure incurred on the maternity centre during the preceding twelve months.

35.

Extent of grant-in-aid

.-Every owner of an establishment or factory or a contractor engaged in the manufacture of beedis who maintains a dispensary or a maternity centre for the benefit of workers employed in his establishment which conforms to be prescribed standard under rules 29 and 32, as the case may be and is subject to inspection under rules 30 and 33, as the case may be, if he desires to carry on improvement on the facilities existing on the 1st April, 1976 be eligible for such grant-in-aid in respect of non-recurring expenditure on such improvement as the Central Government may decide, subject to the condition that it shall not exceed 50 per cent of the said expenditure.

36.

Standard of facilities for education and recreation

-(1) The standard of facilities for education and recreation of workers to be provided by owners of establishments or factories or contractors who are engaged in the manufacture of beedis for the purpose of getting grant-in-aid as envisaged in clause (c) of sub-section (1) of section 4 of the Act shall be as specified in Schedule IV hereinafter in this rule and in rules 37, 38 and 39 referred to as the prescribed standard.

(2)

There shall be maintained an independent welfare centre at each establishment or factory engaged in the manufacture of beedis according to the prescribed standard.

(3)

The Commissioner may, if he is satisfied that the centre is being efficiently maintained and serves the purposes for which it is established, waive any of the requirements specified in the prescribed standard.

37.

Inspection

.-The welfare centre maintained by owners of establishments or factories or contractors engaged in the manufacture of beedis shall be inspected at intervals not exceeding one year by such officer as may be authorised by the Commissioner for the purpose or by the Commissioner himself whenever he considers it necessary and the inspecting officer or the Commissioner, as the case may be, shall, if the centre conforms to the prescribed standard issue a certificate in Form C which shall be valid for a period of one year from the date of issue.

38.

Submission of periodic returns

.-Every owner of an establishment or factory or contractor engaged in the manufacture of beedis who maintains a welfare centre according to the prescribed standard shall submit to the Commissioner-

(i)

immediately on the establishment of the welfare centre, adequate proof to the satisfaction of the Commissioner showing the capital expenditure incurred on the construction and equipment of the welfare centre; and

(ii)

in January, each year a certified statement of the expenditure incurred on the welfare centre during the preceding twelve months:

Provided that the statements shall not include expenditure, if any, incurred on repairs and replacements.

39.

Extent of grant-in-aid

.-Every owner of an establishment engaged in the manufacture of beedis who maintains a welfare centre for the benefit of the workers employed in his establishment which conforms to the prescribed standard under rule 36 and is subject to inspection under rule 37 be eligible to a grant-in-aid which shall not exceed 50 per cent of the amount spent by the owner of the establishment in the construction and equipment of the welfare centre subject to the maximum of Rs. 10,000.

Miscellaneous

40.

Statistics and other information

.-

(1)

The owner of an establishment, factor or contractor engaged in the manufacture of beedis shall maintain such registers as the Central Government may specify and shall also furnish such statistics and other information as that Government or any person so authorised may, by written order, require for the purposes of the Act, in Form D and within such time (being not less than thirty days from the date on which the order is served on the person concerned), and in such manner, as may be specified in the order.

(1)

[(ab) The agency shall maintain such registers as the Central Government may specify and shall also furnish such statistics and other informations that Government or any person so authorised may by written order, require for the purposes of the Act, in Form D-1 within such time (being not less than 30 days from the date on which the order is served on the person concerned), and in such manner, as may be specified in that order.]

[Substituted by G.S.R. 750, dated 22.9.1989 (w.e.f. 7.10.1989).]

(2)

(a)

The Commissioner may require that executive authority of any local body such as Municipality, District Board, Panchayat Boards, Block Development Units in any State or Union Territory where persons are engaged in the manufacture of beedis to prepare a register of beedi workers residing within the jurisdiction of that authority.

(b)

The registers referred to in clause (a) shall contain the following particulars relating to the beedi workers in the area under the jurisdiction of the local authority:

1. Name
2. Age
3. Sex
4. Address
5. Place of work
6. Distance of place of work from their residence
7. Name of person or establishment by whom employed
8. Name of the trade mark holder.

(c)

Officers deputed by the Commissioner shall be afforded all necessary facilities by the owners and local authorities to collect statistics or other information from the register referred to in clause (a) for the purposes of the Act.

(3)

Any owner of an establishment or factory or contractor engaged in the manufacture of beedis who, without reasonable excuse fails to furnish the statistics or other information required under sub-rule (1) or furnished statistics or other information containing a statement, entry or detail which is not to the best of his knowledge or belief true or any executive authority enumerated under sub-rule (2), who, without reasonable excuse, fails to prepare a register as required under that sub rule shall be punishable with fine which may extend to Rs. 500.

41.

Identity card .- [(1)] The owner of an establishment factory or contractor engaged in the manufacture of beedis shall issue to every employee an identity card in Form E on which a photograph of the worker would also be affixed.

(2)

[Any owner of an establishment, factory or contractor engaged in the manufacture of beedis who without reasonable cause fails to issue to any employee an identity card as required under sub-rule (1) shall be punishable with fine which may extend to two thousand rupees.]

[Inserted by G.S.R. 750, dated 22.9.1989 (w.e.f. 7.10.1989).]

42.

[Power to file complaints .-Welfare Commissioners, Assistant Welfare Commissioners and Welfare Administrators shall have power to file complaint before the appropriate Court for breach of these rules.]

I

[***]

[Schedule I omitted by G.S.R. 251, dated 6.4.1990 (w.e.f. 21.4.1990).]

II

(See rule 29)

Standard Of Dispensary Services

I. BUILDING

1. [[Dispensary catering for 1,000 workers or less-four rooms to be used as follows:

(i)

Consulting room (5 metres x 4 metres)

(ii)

Dressing room (5 metres x 4 metres)

(iii)

Dispensary and store room (5 metres x 4 metres). Covered waiting accommodation 15 square metres two latrines (flush

type) each 2 metres x 3 metres]

(iv)

[Minor operation room (5 metres x 4 metres)]

[Inserted by G.S.R. 703, dated 6.8.1982 (w.e.f. 21.8.1982).]

2. Dispensary catering for 1,001 to 2,000 workers-Six rooms to be used as follows:

(i)

consulting room for males (5 metres x 4 metres)

(ii)

consulting room for females (5 metres x 4 metres)

(iii)

Minor operation room (5 metres x 4 metres)

(iv)

Dispensary room (5 metres x 4 metres)

(v)

Laboratory room (15 to 18 square metres)

(vi)

Store room (5 metres x 4 metres)

Covered waiting accommodation-20 square metres. Two latrines (flush type) each 2 metres x 3 metres

3. Dispensary catering for 2,001 workers or more-Nine rooms to be used as follows:

(i)

Consulting room for males (5 metres x 4 metres)

(ii)

Consulting room for females (5 metres x 4 metres)

(iii)

Minor operation room (5 metres x 4 metres)

(iv)

Dispensary (5 metres x 4 metres)

(v)

Laboratory room (15 to 18 square metres)

(vi)

Dressing room (3 metres x 4 metres)

(vii)

Dark room (3 metres x 3 metres)

(viii)

Registration and record office room (15 square metres)

(ix)

Store room (5 metres x 4 metres)

Covered waiting accommodation-25 square metres. Three latrines (flush type) each 2 metres x 3 metres.

Each dispensary shall provide emergency beds for treatment of simple and emergency case at the rate of one bed for every 250 workers subject to a minimum of two beds, one for males and one for females. For this purpose separate room shall be provided for males and females. The rooms shall have air space of 18 cubic metres per bed and door and window space not less than one-third of the floor space with verandah 2.5 metres wide along the front of the room.

Establishments manufacturing beedis which have no provision for emergency beds on the lines mentioned above at their dispensaries at the commencement of the Beedi Workers Welfare Fund Rules, 1978 may within a period of three years from such commencement provide for such beds. These establishments which fail to provide emergency beds within such period shall not be entitled to any subsidy thereafter even if they may be otherwise qualified for it.

II. STAFF

1. Dispensary catering for 250 workers or less:

Table

Registered Medical Practitioner

1

(whole-time)

Auxiliary Nurse Midwife

1

(whole-time)

Compounder-cum-Dresser

1

(whole-time)

Sweeper

1

(whole-time)

2. Dispensary catering for 250 to 500 workers:

TABLE

Registered Medical Practitioner

1

(whole-time)

Auxiliary Nurse Midwife

1

(whole-time)

Compounder-cum-Dresser

1

(whole-time)

Sweeper

1

(whole-time)

3. Dispensary catering for 501 to 1,000 workers

TABLE

Registered Medical Practitioner

1

(whole-time)

Auxiliary Nurse Midwife

1

(whole-time)

Compounder-cum-Dresser

1

(whole-time)

Sweeper

1

(whole-time)

Attendants

2

(whole-time)

Cook

1

(whole-time)

4. Dispensary catering for 1,001 to 2,000 workers:

TABLE

Registered Medical Practitioner

1

(whole-time)

Compounder

1

(whole-time)

Dresser

1

(whole-time)

Auxiliary Nurse Midwife

1

(whole-time)

Sweeper

2

(whole-time)

Attendants

3

(whole-time)

Cook

1

(whole-time)

5. Dispensary catering for 2,001 workers or more:

TABLE

Registered Medical Practitioner

1

(whole-time)

Compounder

2

(whole-time)

Dresser

1

(whole-time)

Auxiliary Nurse Midwife

1

(whole-time)

Nurse

1

(whole-time)

Sweeper

2

(whole-time)

Attendants

4

(whole-time)

Cooks

2

(whole-time)

III. LIST OF DRUGS, SURGICAL EQUIPMENTS, DRESSINGS, ETC., FOR DISPENSARY

A. DRUGS

1. Acid Acetic.

2. Acid Boric.

3. Acid Carbolic.

4. Acid Salicylic.

5. Aqua Distillate.

6. Ammon Carb.

7. Aspirin.

8. Acriflavin or other anti-septic dye.
9. Benedict's solution.
10. Calcium lactate.
11. Copper sulphate.
12. Calamina Prepareate.
13. Cod Liver Oil.
14. Ephedrine Hydrochlor (1 /2 gr. tab.).
15. Ether.
16. Esct. Glycrr Liq.
17. Ferri Sulph.
18. Ferriet ammoni citras.
19. Glucose.
20. Glycerine.
21. Gum Acacia.
22. Hydrarg ammoniata.
23. Hydrarg oxide flava.
24. Ethyol.
25. Kaoline.
26. Lint saponis.
27. Liq Ammon acetate.
28. Liq. Plumbi subact as frot.
29. Lysol.
30. Mag. oxide Powder or Mag. Trisillicate.
31. Mag. Sulph.
32. Menthol.
33. Multi vitamin tab.
34. Oil Ricini.
35. Oil Menth Pip.
36. Oil Olive or Oil of arachis.
37. Paludrine tabs.
38. l'heno Barbitone.
39. Pot. Bromide.
40. Pot. Citrate.
41. Pot. Iodide.
42. Pot. permanganate.
43.
Protargol or Argyrol.
44.
Puly. Ipecas Co.
45.
Puly. Quinine sulphe.
46.
Sodi. Bicarb.
47.
Sodi. Salicylate.
48.
Sodi. Chloride.
49.
Spt. Ammon Aromat.
50.
Spt. Methyl.

51.
Spt. Rect.
52.
Sulphaulamide or Sulphadizine tablets.
53.
Sulphaguanidine.
54.
Sulphalinamide powder.
55.
Tab. Digozine or Pill Diggitalis Co. B.P.S.
56.
Tabs Laxative Co. B.P.C.
57.
Tetrachlorethylene.
58.
Tinct. Belladonna.
59.
Tinct. Benxoin Co.
60.
Tinct. Oppl. Camphorate.
61.
Tinct. Card Co.
62.
Tinct. Hyoscyamus.
63.
Tinct. Iodine.
64.
Ung. Sulphuric B.P.C.
65.
Vaseline.
66.
Vin Ipecac or tinct. /or lip.
67.
Zinc oxide.
68.
Adrenalin Hydrochloride Liquor (1:1000).
69.
Coramine or Nikethmide.
70.
Emetine Hydrochloric (amp or tab)
71.
Gr. 1.
72.
Gr.1/2.
73.
Injection Quinine Gt. 10.
74.
Percaine Hydrochloric or Novocain 2 per cent amp.
75.
Serum Anti-venum.
- 76.

Serum Tetanus anti-toxin 1500 units.

77.

Soluseptasine or other injectable sulphamide.

78.

Tab Atropine (1 / 100 gr.)

79.

Tab Morphine (1/60 mg.).

80.

Penicillin 1,00,000 unit ampoules or 1,00,000 unit ampoules.

81.

Streptomycine.

82.

,.90 P.A.S

83.

Isonicotinic Acid Hydrazide.

84.

Introdex.

85.

Dextrose and sodium chloride infection U.S.P. transfusion bottles. }

91.

Inj. Avil., Life saving drugs.

86.

Distilled water ampoules.

87.

Liquid paraffin.

88.

Vin gars.

89.

TenamusToxoid.

90.

Inj. Decadron.

91. Inj. Avil. Life saving drugs.

92.

Tetracycline Cap.

93.

Chloremphenicol Cap. Broad spectrum antibiotics.

Chloremycetin Cap. If

94.

Chlolorostrep Cap.

95.

Vit. B. Complex tab. Medicines generally required.

96.

Inj. Vit. B. Cc

97.

Inj. Vit. B. 12

B. DRESSING

TABLE

-

250 workers or below

251-1,1000 workers

1.

Bandage, roller 15 cm

6

6

2.

Bandage, roller 10 cm.

6

6

3.

Bandage, roller 8 cm.

6

6

4.

Bandages Triangular

6

6

5.

Cotton Wool

450 gms.

450 gms.

6

Guaze metre each

6

12

7.

Lint

100 gms.

100 gm

8.

Plaster of paris bandage 10 cm.

-

6

9.

Plaster of p tTis bandage 8 cm.

-

6

10.

Strapping adhesive 12 roller

1

1

11.

Strapping adhesive 2 roller

1

1

12.

Strapping adhesive 3 roller

1

1

13.

Bum Dressing

6

12

C. MEDICAL AND SURGICAL REQUIREMENTS

TABLE

1.	
Basin 35 cm.	
1	
1	
2	
Bowls E 3.5 cm.	
1	
1	
3	
Bowls E 4. 5 cm.	
1	
1	
4	
Catheter rubber (size 8 & 10)	
2	
2	
5.	
Cap feeding	
1	
2	
6	
Douche can with fittings	
-	
1	
7.	
Drums dressing	
1	
1	
8.	
Examination lamp	
1	
1	
9	
Forceps artery	
2	
2	
10.	
Forceps Cheatle	
1	
1	
11.	
Forcep, Dissecting toothed	
-	
1	
12.	
Forceps Disecting plain	
1	
1	
13.	

Hammer percussion

1

1

14.

Jug measures

1

1

15.

Lancet Vaccination

-

1

16.

Mirror Forehead

-

1

17.

Needle aneurysm

-

1

18.

Needle suture assorted

6

6

19.

Probe

1

2

20.

Razor Safety

1

1

21.

Roger's cholera apparatus or apparatus intravenous

1

1

22.

Stethoscope

1

1

23.

Syringes 2 c.c.

1

1

24.

Syringes 10 c.c.

1

1

25.

Syringes 20 c.c. or above

-

1

26.
Spygmonanorneter
-
1
27.
Speculam Nasal
1
1
28.
Speculam Aural
1 set
1 set
29.
Stone primus
1
1
30.
Scal pels
1
2
31.
Skinner's mask
-
1
32.
Stretcher
1
1
33.
Syringes ear
-
1
34.
Spud eye
-
1
35.
Splint leg Thomas (medium)
-
1
36.
Splinting wire crammor
-
1
37.
Scissors straight Mayo
-
1
38.
Scissors straight both ends sharp
-

1

39.

Sterliser Instrument portable

-

1

40.

Thermometers

1

2

41.

Tongue depressor

1

1

42.

Tape measure

1

1

43.

Test type chart

1

1

44.

Tray dressing

1

2

45.

Tray kidney

1

2

46.

Tourniquet

1

1

47.

Undine

1

1

48.

Weighing machine

1

1

49.

Water proof sheets of 2 metres

1

1

50.

Autoclave

1

1

51.

Stomach tube

1

1

52.

Mouth gag

1

1

53.

Cat gut

(assorted numbers)

6 tubes

12 tubes

54.

Silk work gut or nylon thread

3 metres

6 metres

55.

Sets of wooden splints (4'1/2 ",3",1",6")

1 set

2 set

56.

Lifter

1

1

57.

Enamel bucket

1

1

58.

Stainless Steel dekchi 12" with cover

1

2

59.

Wooden board 7" x 1'

" x 1"

1

1

60.

Torch with spare cells

1

1

61.

Stretchers

2

2

62.

Eye Cups

1

1

III

(See rule 32)

Standard Of Maternity Centres

1. BUILDING

1. Maternity Centres for an establishment manufacturing beedis employing up to 1,000 workers:

TABLE

- (i)
Consulting and office room
(5 metres x 4 metres)
- (ii)
Labour room
(5 metres x 4 metres)
- (iii)
Annexe to the labour room for sterilizing
(3 metres x 3 metres)
- (iv)
Dispensary room
(5 metres x 4 metres)
- (v)
Store room
(3 metres x 3 metres)
- (vi)
Ward for two beds
(5 metres x 4 metres)
- (vii)
Bath room and latrines (two flush)
(2 metres x 3 metres)
- (viii)
Annexe to the bath room for bathing babies
(2 metres x 3 metres)
- (ix)
Washing room
(2 metres x 3 metres)
- (x)
Kitchen
(2 metres x 3 metres)
- (xi)
Covered waiting shed
(15 square metres)

Note.-A part of the ward may be screened off to provide staff.for work room for nursing

2. Maternity Centres for an establishment manufacturing beedis employing up to 2,000 workers:

TABLE

- (i)
Consulting and office room
(5 metres x 4 metres)
- (ii)
Labour room
(5 metres x 4 metres)
- (iii)
Annexe to the labour room for sterilizing
(3 metres x 3 metres)
- (iv)
Dispensary room
(5 metres x 4 metres)

(v)

Work room for nursing staff for storage of medicines maintenance and preparation of supplies and maintenance of records and reports

(5 metres x 4 metres)

(vi)

Store room

(3 metres x 3 metres)

(vii)

Ward for two beds

(5 metres x 4 metres)

(viii)

Bath room and latrines (two flush)

(2 metres x 3 metres)

(ix)

Annexe to the bath room for bathing babies

(2 metres x 3 metres)

(x)

Washing room

(2 metres x 3 metres)

(xi)

Kitchen

(2 metres x 3 metres)

(xii)

Laboratory

(10 square metres)

(xiii)

Covered waiting shed

(15 square metres)

3. Maternity Centres for an establishment manufacture beedis workers:

TABLE

(i)

Consulting and office room

(5 metres x 4 metres)

(ii)

Labour room

(5 metres x 4 metres)

(iii)

Annexe to the labour room for sterilizing

(3 metres x 3 metres)

(iv)

Dispensary room

(5 metres x 4 metres)

(v)

Work room for nursing staff for storage of medicines maintenance and preparation of supplies and maintenance of records and reports

(5 metres x 4 metres)

(vi)

Minor operation room

(5 metres x 4 metres)

(vii)

Store room

(3 metres x 3 metres)

(viii)

Ward for two beds

(5 metres x 4 metres)

(ix)

Bath room and latrines (two flush)

(2 metres x 3 metres)

(x)

Annexe to the bath room for bathing babies

(2 metres x 3 metres)

(xi)

Washing room

(2 metres x 3 metres)

(xii)

Kitchen

(2 metres x 3 metres)

(xiii)

Laboratory

(10 square metres)

(xiv)

Covered waiting accomodation

(15 square metres)

II. STAFF

1. Maternity Centres for an establishment manufacturing beedis employing 1,000 workers and below:

TABLE

(i) Registered Medical Practitioner (Lady)

1

Full time

(ii) Nurse

1

Full time

(iii) Health Assistant (Female)

2

Full time

(iv) Compounder

1

Full time

(v) [Sweepers (Female)

[Substituted by G.S.R. 703, dated 6.8.1982 (w.e.f. 21.8.1982).]

[2]

[Substituted by G.S.R. 703, dated 6.8.1982 (w.e.f. 21.8.1982).]

Full time

2. Maternity centre for an establishment manufacturing beedis employing 1,001 to 2,000 workers:

TABLE

(i) Registered Medical Practitioner (Lady)

1

Full time

(ii) Compounder

2

Full time

(iii)[Health Assistant (Female)]

[Substituted by G.S.R. 703, dated 6.8.1982 (w.e.f. 21.8.1982).]

2

Full time

(iv) Seepers (Female)

3

Full time

(v) Ayahs

2

Full time

(vi) Cook

1

Full time

3. Maternity Centre for an Establishment manufacturing beedis employing more than 2,000 workers:

TABLE

(i) Registered Medical Practitioner (Lady)

1

Full time

(ii) Nurse

1

Full time

(iii)[Health Assistant (Female)]

[Substituted by G.S.R. 703, dated 6.8.1982 (w.e.f. 21.8.1982).]

3

Full time

(iv) Compounder

1

Full time

(v) Sweepers (Female)

3

Full time

(vi) Ayahs

3

Full time

(vii) Cook

1

Full time

lii. List Of Drugs, Surgical, Equipments, Dressing, Etc., For Maternity Centres

A. DRUGS

1. Acid Acetic.

2. Acid Boric.

3. Acid Carbolic.

4. Acid Selicylic.

5. Aqua Distillate.

6. Ammon Carb.

7. Aspirin.

8. Acriflavin or other anti-septicdye.

9. Benedict's solution.

10. Calcium lactate.

11. Copper sulphate.

12. Calamina Prepareate.

13. Cod Liver Oil.

14. Ephedrine Hydrochlor (1/2 gr. tab).
15. Ether.
16. Esct. Clycrr. Liq.
17. Ferri Sulph.
18. Ferriot Ammoni citras.
19. Glucose.
20. Glycerine.
21. Gum acacia.
22. Hydrarg ammoniata.
23. Kaoline.
24. Liq. Ammon Acetate.
25. Liq. Plumbi subacetat fort.
26. Lysol.
27. Mag. Oxide powder or Mag Trisillicate.
28. Mag. Sulph.
29. Multi Vitamin tab.
30. Oil Ricini.
31. Oil Manth pip.
32. Oil Olive or Oil of arachis.
33. Paludrine tabs.
34. Phenobarbitons.
35. Pot. Bromide.
36. Pot. Citrate.
37. Pot. Iodide.
38. Pot permanganate.
39. Protargol or Argyrol.
40. Pulv. Ipeoas Co.
41. Pulv. Quinine sulph.
42. Sodi Bicarb.
43. Sodi. Salicylate.
44. Spt. Ammon Aromat.
45. Spt. Mathyl.
46. Spt. Rect.
47. Sulphanilamide or Sulphadiazine tablets.
48. Sulphaguanidine.
49. Sulphanilamide powder.
50. Tab. Digoxin or Pill Digitalis Co. B.P.S.
51. Tabs. Laxative Co. B.P.C.
52. Tinct. Belladonna.
53. Tinct. Monoin Cap.
54. Tinct. Opil camphorata.
55. Tinct Card Co.
56. Tinct. Hyeseyamus.
57. Tinct. Iodine.
58. Ung. Sulphuris B.P.C.
59. Vaseline.
60. Vin Ipeacal or tincture or liq.
61. Zine oxide
62. Adrenalin Hydrochloride Liquor (1:1000).
63. Coramine or Nikethmide.
64. Emetine Hydrochlor (amp or tab)

65. Gr. 1.
66. Gr. 1/2.
67. Injection Quinine Gr. 10.
68. Peracine Hydrochlor or Novocain 2 per cent amp.
69. Serus Tetanus anti toxin 1,500 units.
70. Soluseptasine or other injectable sulphamide.
71. Tab. Atropine (1/100 gr.)
72. Tab. Morphine
73. Penicillin 1,00,000 unit ampoules or 4,00,000 unit amp.
74. Streptomycine.
75. P.A.S.
76. Isonicotinic Acid Hydrazide.
77. Ext. Ergot Liquid.
78. Erashul Capsules or Neegynegin.
79. Lovelive ampoules.
80. Introdex.
81. Dextrose and sodium chloride injection U.S.P. in transfusion bottles.
82. Distilled water ampoules.
83. Liquid paraffin.
84. Vinegars.
85. Tetanus taxoid.

Note.-The actual quantities of the above mentioned items to be stocked shall be such as are found necessary in the light of the day to day working of the maternity centres provided that provision for drugs shall be made at each centre at least at the rate of 50 paise per annum per worker attached to the maternity centre.

B. DRESSINGS

TABLE

1,000 workers or below

1,001-2,000 workers

1.

Bandage, roller 10 cm.

12

12

2.

Bandage, roller 10 cm.

12

12

3.

Bandage, roller 08 cm.

12

12

4.

Bandage, Triangular

12

12

5.

Cotton Wool

1.35 kilogram

1.35 kilogram

6.

Gauze 1 metre each

12 metres

24 metres

7.

Lint

200 grams

300 grams

8.

Strapping adhesive 12 roller

2

2

9.

Strapping adhesive 2 roller

2

2

10.

Strapping adhesive 3 roller

2

2

11.

Burn Dressing

12

12

C. MEDICAL AND SURGICAL EQUIPMENTS

TABLE

1.

Basin 35 cros.

2

4

2.

Bowls E. 3.5 cm.

2

2

3.

Bowls E. 4.5 cm.

2

2

4.

Female Catheter rubber & Moetel (8 & 10)

4

4

5.

Cup feeding

2

4

6.

Douche can with fittings

1

2

7.

Drums dressing

2

2

8.
Examination lamp
2
2
9.
Forceps artery
2
2
10.
Forceps oneatte
1
1
11.
Forceps Disecting toothed
1
1
12.
Forceps Disecting plain
1
1
13.
Hammer percussion
1
1
14.
Jug measures
1
1
15.
Lancet Vaccination
1
1
16.
Mirror Forehead
1
1
17.
Needles aneurysm
-
1
18.
Needle suture assorted
6
6
19.
Probe
1
2
20.
Razor Safety with blades
2

4

21.

Roger's cholera apparatus or apparatus intravenous

1

1

22.

Vaginal Retracter

1

2

23.

Vaginal speculum

1

2

24.

Ovam Forceps

1

2

25.

Heggar's Dilator

I set

I set

1,000 workers or below

1,001-2,000 workers

26.

Curette sharp and blunt flushing

1

1

27.

Delivery forceps

1

2

28.

Foetal Stethoscope

1

1

29

Palvimeter

1

1

30.

Perforator

1

1

31.

Cramotatory forceps

1

1

32.

Maternity table

1

1

'33.

Stethoscope

1

2

34.

Syringes 2 c.c.

2

2

35.

Syringes 10 c.c.

2

2

36.

Syringes 20 c.c. or above

1

1

37.

Spygmonanometer

1

1

38

Stove primus

2

-

39.

Scrapples

1

2

40.

Skinnners mask

1

1

41.

Stretcher

2

2

42.

Scissors straight both ends sharp

1

1

43.

Scissors straight mayo

1

1

44.

Sterillizer instrument portable

1

1

45.

Thermometers

2

4

46.

Tongue depressor

2

2

47.

Tape measure

1

1

48.

Test type-chart

1

1

49.

Tray dressing

2

2

50.

Tray kidney

2

2

51.

Tourniquet

1

1

52.

Weighing machine

1

1

53.

Water proof sheets of 2 meters

2

4

54.

Autoclave

1

1

55.

Stomach tube

1

1

56.

Mouth gag

1

1

57.

Cat gut assorted (numbers)

6 tubes

12 tubes

58.

Silkworm gut or nylon thread

3 metres

6 metres

59.

Sets of wooden splints (4'2"

1

1

60.

Lifter

1

2

61.

Enamel bucket

2

4

62.

Stainless steel dekchi 12" with cover

1

2

63.

Wooden board 7"x1 1/2"x1"

1

1

64.

Torch with spare cells

1

1

65.

Stretcher

2

2

66.

Eye Cups

1

1

TABLE

1,000 workers or below

1,001-2,000 workers

D. OTHER EQUIPMENT

1

Blankets

6

12

2.

Bin for soiled clothes

2

4

3

Bottles drop with grooved stoppers

2

2

4.

Cork screw

2

2

5

Corks assorted

25

50

6.

Dropper eye

2

2

7.

Funnel 100 gms. glass or E.

1

1

8

Filter paper

1 packets

1 packets

9.

Gloves

2 pairs

4 pairs

10.

Litmus paper red

2 packets

4 packets

11.

Litmus paper blue

2 packets

4 packets

12

Measure glass 200 gms.

2

2

13.

Measure glass 50 gms.

2

2

14

Minim glass

2

2

15.

Pestle and mortar composition

1

1

16

Pin safety

12

12

17.
Pot dealf with cover
2
2
18.
Spatula
1
1
19.
Slab ointment
1
1
20.
Soap
4 cakes
8 cakes
21
Spirit lamp
2
2
22.
Scales and weights
4
8
23.
Slides glass
15 gms
15 gms
24.
Scissors sharp
2
2
25.
Towels ordinary
4
8
26.
Tin opener
2
2
27.
Test tubes
8
8
28.
Test tubes stand
2
2
29.
Test tube holder
2

2

30.

Urine glass specimen

2

4

31.

Mattress

4

6

32.

Beds

4

6

33.

Nail Brush

2

4

34.

Sand Bags 12" x 8"

3

6

E. FURNITURE

TABLE

1.

Almirah

1

1

2.

Benches

4

8

3.

Chairs

4

8

4.

Cupboard poison

1

1

5.

Examination couch (female)

1

1

TABLE

1,

000 workers or below

1,001-2,000 workers

6.

Stools

2

2

7.

Screen

1

2

8.

Table Medical Officer

1

1

9.

Table dispensing

1

1

10.

Table dressing

1

1

Note.-In the case of dressings, medical and surgical equipments other centre equipments and furniture, a 50% increase in the number shown for 2,000 workers shall be made for every additional 1,000 workers.

IV

(See rule 36)

Standard Of Facilities For Education And Recreation-Welfare Centre

WELFARE CENTRE

I. Accommodation

(a)

1. One hall of 45 square metres.

2. Two rooms of 15 square metres each.

3. Covered verandah 18 square metres.

4. One lavatory for men.

5. One lavatory for women.

6. One bathroom for children.

(b)

Playground of the size of 36 metres x 18 metres.

(c)

Children's park equipment-

TABLE

1,

000 workers or below

1,001-2,000 workers

6.

Stools

2

2

7.

Screen

1

2

8.

Table Medical Officer

1

1

9.

Table dispensing

1

1

10.

Table dressing

1

1

II. Staff

TABLE

1. Adult Education cum games instructor

1

2. Sevika

1

III. Furnitureand Equipment

TABLE

1. Table

1

2. Chair

2

3. Chair steel folding

6

4. Notice Board

1

5. Benches

2

6. Black Board

1

7. Steel Almirah

1

8. Coir mat 15 metre x 1 metre

1

9. Radio with loudspeaker

1

10. Slates, pencils, chalk, etc.

As necessary

11. Books ,Charts, Maps,etc

As necessary

12. Petromax (if no electricity is available) 1

1

13. Dholak

1

14. Jhals

4 pairs

15. Volley ball Court equipment,ball etc

1 set

16. Tennikoit set

1

17. Carrom Board

2

18. Chess 2

2

19. Ludo

3

20. Newspapers and periodicals As necessary

As necessary

21. Sewing machine

1

22. Scissors

1 pair

23. Tape

1

24. Knitting and crochet needles As necessary

As necessary

25. Raw materials As necessary

As necessary

26. Gong

1

V

(See rule 30)

FORM A

CERTIFICATE OF INSPECTION

Inspection report of theDispensary at.....by thefor
the year ending 20.....

1. Name of establishment (including factory)/contractor, engaged in the manufacture of beedis served by dispensary

2. Number of workers for which it caters

3. Date and hour of inspection

4. Date of last inspection

5. Dispensary building:

(a)

Condition of dispensary building

(b)

Does the accommodation provided conform to the prescribed standard?

6. Medicines:

(a)

Is the supply sufficient and according to the prescribed scale?

(b)

Are the poisons labelled and kept separately under lock and key?

7. Surgical instruments and equipment-Are they sufficient and in good order?

8. Staff Acquittance Rolls-Are they in order and up-to-date?

9. Registers and Returns-Are these properly kept and regularly submitted?

10. Establishment

(a)

Officer-in-charge:

(i)

Part-time/whole-time

(ii)

Name and qualifications

(b)

Designation and pay of staff:

(i)

Medical Graduate

(ii)

Medical Licentiate

(iii)

Lady Doctor

(iv)

Nurse

(v)

Compounder

(vi)

Auxiliary Nurse Midwife

(vii)

Male Dresser

(viii)

Female Dresser

(ix)

Sweeper

(x)

Chowkidar

(xi)

Peon

(c)

Attendance Register-Do the staff attend regularly?

11. Annual expenditure on:

(a)

Establishment

(b)

Medicines

12. Out-patients:

(a)

Number seen at the time of visit

(b)

Total number of new patients treated in current year up-to-date

(c)

Total number of old patients treated in current year up-to-date

(d)

Total treated during the last year

(e)

Do the entries on tickets of patients present tally with the entries on the registers?

(f)

Are there any arrangements for treating women apart from men?

13. Are you satisfied with the working of the dispensary?

If not, what suggestions can be made for its improvement?

I certify that I have inspected the dispensary noted above and that it conforms/does not conform in the following respects* to the standards laid down in the Beedi Workers Welfare Fund Rules, 1978.

.....

Signature of Inspecting Officer

Date20.....

Counter Signature of Commissioner

Date20.....

*Give details below.

Note.-The counter signature of the Commissioner is not necessary when the Commissioner himself is the Inspecting

Authority.

FORM B

(See rule 33)

CERTIFICATE OF INSPECTION

Inspection report of the Maternity Centre atby the.....for the yearending.....
20.....

1. Name of establishment (including factory)/contractor, engaged in the manufacture of beedis served by the maternity centre

2. Number of workers for which it caters

3. Date and hour of inspection

4. Date of last inspection

5. Maternity Centre Buildings:

(a)

Condition of Maternity Centre building

(b)

Does the accommodation provided conform to the prescribed standard?

6. Medicines:

(a)

Is the supply sufficient and according to the prescribed scale?

(b)

Are the poisons labelled and kept separately under lock and key?

7. Surgical Instruments and equipments-Are they sufficient and in good order?

8. Staff Acquittance Rolls-Are they in order and up-to-date?

9. Registers and Returns-Are these properly kept and regularly submitted?

10. Establishment

(a)

Officer-in-charge:

(i)

Part-time/whole-time

(ii)

Name and qualifications.

(b)

Designation and pay of staff:

(i)

Medical Graduate

(ii)

Medical Licentiate

(iii)

Lady Doctor

(iv)

Compounder

(v)

Nurse

(vi)

Midwife

(vii)

Ayah

(viii)

Sweeper

(ix)

Ward Attendant

(x)

Cook

(c)

Attendance Register-Do the staff attend regularly?

11. Annual expenditure on:

(a)

Establishment

(b)

Medicines

12. Out-patients:

(a)

Number seen at the time of visit

(b)

Total number of new patients treated in current year up-to-date

(c)

[* * *]

[Omitted by G.S.R. 703, dated 6.8.1982 (w.e.f. 21.8.1982).]

(d)

Total treated during the last year

(e)

Do the entries on tickets of patients present tally with the entries on the register?

13. Are you satisfied with the working of the Maternity Centre? If not, what suggestion can you make for its improvement?

I certify that I have inspected the Maternity Centre noted above and that conforms/does not, conform in the following respects* to the standards laid down in the Beedi Workers Welfare Fund Rules, 1978.

.....

Signature of Inspecting Officer

Date20.....

Counter Signature of Commissioner

Date20.....

*Give details below.

Note.-The counter signature of the Commissioner is not necessary when the Commissioner himself is the inspecting authority.

FORM C

(See rule 37)

CERTIFICATE OF INSPECTION OF THE WELFARE CENTRE

Inspection report of theWelfare Centre at..... by the
.....for the year ending 20.....

1. Name of establishment (including factory) /contractor engaged in the manufacture of, beedis served by the centre

2. Number of workers for which it caters

3. Date and hour of inspection.

4. Date of last inspection.

5. Centre Buildings:

(a)

Condition of building

(b)

Does the accommodation provided conform to the prescribed standard?

6. Equipment:

(a)

Are the equipments provided according to the prescribed standard?

(b)

Is timely repair/ replacements done where necessary?

(c)

Are the equipments all in serviceable condition?

7. Establishment

(a)

Officer in charge:

(i)

Part-time/whole-time

(ii)

Name and qualifications

(b)

Designation and pay of staff:

(i)

Adult Education Instructor

(ii)

Sevika

(iii)

Sweeper

(c)

Attendance Register-Do the staff attend regularly?

8. Annual Expenditure on:

(a)

Establishment

(b)

Repairs and replacement of equipments

9. Activities:

(a)

Total number of rolls attending the centre

(b)

Number seen at the time of inspection

(c)

Number of adults attending literacy classes

(d)

Number of women attending craft classes

(e)

Number of adults participating in games and sports

10. Are you satisfied with the working of the Centre? If not, what suggestion can be made for its improvement?

I certify that I have inspected the Welfare Centre noted above and that conforms/does not, conform in the following respects* to the standards laid down in the Beedi Workers Welfare Fund Rules, 1978.

Signature of Inspecting Officer

Date20.....

Counter signature of Commissioner

Date20.....

*Give details below.

Note.-The counter signature of the Commissioner is not necessary when the Commissioner himself is the Inspecting Authority.

FORM D

(See rule 40)

STATISTICS AND OTHER INFORMATION

1. Name of factory/ establishment or contractor engaged in the manufacture of beedis

2. Location and full postal address of factory/establishment/contractor
3. Name of the employers of the factory /establishment/contractor and licence number issued by the Excise Department
4. (a) Amount of tobacco for which licence is issued and actual amount of tobacco received during the period fromto.....

(b)
Quantity of tobacco distributed and number of beedis manufactured from..... to

4. Number of persons employed by the employers/contractors in factories/ establishment/ private dwelling houses during the period from to.....

TABLE

Factories/

Establishment

Private dwelling houses

Male

Female

Children

Total

6. Location of private dwelling houses where beedi is manufactured and their distance from factories/establishment.

7. Details of welfare facilities provided by the employers of the factory/establishment or contractor to persons employed by him

(A)
Housing

(B)
Medical

(C)
Water supply

(D)
Recreation

(E)
Any other activities

8. Quantum of cess paid by the employer of the Factory /establishment or contractor in the manufacture of beedis under the Beedi Workers Welfare Cess Act, 1976, during the period fromto.....

9. Any other information considered necessary regarding employment, wages, welfare, facilities allowed to the workers.
Certified that the above particulars are true to the best of my knowledge and belief and are based on the records maintained in my establishment/factory.

Place:

Date:

Employer of factory/establishment/contractor

[FORM D-1

[Inserted by G.S.R. 750, dated 22.9.1989 (w.e.f. 7.10.1989).]

(See rule 40)

1. Name of the Agency
2. Year of formation of Agency
3. Location and full postal address
4. Name and addresses of office bearers of the Agency
5. Whether the Agency is a legal entity: (quote registration number, etc.)
6. Whether activities of the Agency are open to participation by citizens of India irrespective of religion, caste, creed, sex or race:
7. Whether the Agency is committed to secular and democratic concepts and methods of functioning
8. Whether the Agency has declared that it will adopt constitutional and non-violent means for achieving its objectives
9. Objectives of the Agency
10. Work experience

11. Length of experience

12. Whether the Agency has a declared constitution, memorandum, bye-laws, article of association (if yes, a copy thereof may be enclosed)

13. Whether the Agency published a statement of accounts for the last year (if so, a copy thereof may be enclosed)

14. Any other information which the Agency may consider necessary to furnish

Certified that the above particulars are true to the best of my knowledge and belief and are based on the records maintained in my agency.

Place:

Date:

Signature of Head of the Agency

Note.-The Welfare Commissioner may ask for any such other information as he considers relevant in the matter.]

[Substituted by G.S.R. 703, dated 6.8.1982 (w.e.f. 21.8.1982).]

FORM E

(See rule 41)

IDENTITY CARD

Sl. No.

Name of the Factory/Establishment/contractor

Name of the Worker

Father/ Husband's name

Address

Age (Date of birth)

Token No.

Place of work Establishment/Home

Dispensary

M.P.I.

Particulars of dependants

TABLE

S1.No.

Name

Age

Relationship

1

2

3

4

5

6

7

.....

Signature of the WorkersSignature of employer of factory/ establishment/ contractor

Date of issue:

Related AI tags, queries and research notes

Translation